



POLICE DEPARTMENT

-----X
In the Matter of the Disciplinary Proceedings :

- against - :

FINAL

Police Officer Elijah Pardieu :

ORDER

Tax Registry No. 968695 :

OF

Military & Extended Leave Desk :

DISMISSAL
-----X

Police Officer Elijah Pardieu, Tax Registry No. 968695, having been served with written notice, has been tried on written Charges and Specifications numbered 2023-28921, as set forth on form P.D. 468-121, dated October 10, 2023 respectively, and after a review of the entire record, Respondent is found Guilty.

Now therefore, pursuant to the powers vested in me by Section 14-115 of the Administrative Code of the City of New York, I hereby DISMISS Police Officer Elijah Pardieu from the Police Service of the City of New York.


HONORABLE JESSICA S. TISCH
POLICE COMMISSIONER

EFFECTIVE: 3/14/25

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POLICE DEPARTMENT

February 5, 2025

-----X

In the Matter of the Charges and Specifications	:	Case No.
- against -	:	2023-28921
Police Officer Elijah Pardieu	:	
Tax Registry No. 968695	:	
Military and Extended Desk Leave	:	

-----X

At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Vanessa Facio-Lince
Assistant Deputy Commissioner Trials

APPEARANCES:

For the Department: Daniel Maurer, Esq.
Department Advocate's Office
One Police Plaza, Room 402
New York, NY 10038

For the Respondent: Police Officer Elijah Pardieu
Respondent appeared *pro se*

To:

HONORABLE JESSICA S. TISCH
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

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CHARGES AND SPECIFICATIONS

1. Police Officer Elijah Pardieu, assigned to the Military Extended Leave Desk, on or about and between July 16, 2023, and July 19, 2023, wrongfully ingested anabolic agents, anabolic steroids, and/or precursors to such anabolic agents and/or anabolic steroids, to wit: Methandrostenolone without police or medical necessity.

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED CONDUCT

2011 Personnel Bureau Memo No. 44

ANABOLIC STEROIDS
AND HUMAN GROWTH
HORMONE

2. Police Officer Elijah Pardieu, assigned to the Military Extended Leave Desk, on or about and between July 16, 2023, and July 19, 2023, wrongfully possessed anabolic agents, anabolic steroids, and/or precursors to such anabolic agents and/or anabolic steroids, to wit: Methandrostenolone, without police or medical necessity.

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED CONDUCT

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REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on December 2, and December 3, 2024. Respondent, who represented himself, pled Not Guilty to the subject charges. The Department called Sergeant Danny Tse, Dr. R.H. Barry Sample, Dr. Joseph Ciuffo, and Sergeant Brittany Rivera as witnesses. Respondent called his wife as a witness, and testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

Having evaluated all of the evidence in this matter, and assessing the credibility of the witnesses, I find Respondent Guilty of the charged misconduct and recommend that he be dismissed from the Department.

ANALYSIS

The following facts are undisputed. On or about July 18, 2023, Respondent's wife made a complaint at the 66 Precinct that Respondent had assaulted and harassed her. When interviewed further about this incident, she disclosed that Respondent may have been under the influence of alcohol and steroids at the time of the alleged incident. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Following the allegation that Respondent may have ingested and/or been under the influence of steroids and the subsequent discovery of steroids in Respondent's home, Respondent was transported to the Medical Division on July 19, 2023 for a drug test. Respondent tested positive for methandrostenolone, commonly known as "D-Bol." (Dept. Ex. 4A, 4B) Methandrostenolone is an anabolic steroid which is not legally available in the United States. Respondent did not dispute the drug test results, but claimed that a) he was prescribed steroids by a medical professional and b) he should have never been drug tested for cause in the first place because at the time he was tested he was on military leave and not employed by the Department. At issue is whether the positive test results can legitimately be justified by the alternative explanations proffered by Respondent and whether he was properly drug tested for cause while on military leave.

Department's Case:

Sergeant Brittany Rivera from IAB testified regarding her role in the investigation of Respondent for his alleged use of steroids. She first described the significance of a "dole for

cause” in general terms. Sergeant Rivera stated that when allegations of drug use have been made about a member of service, the subject officer is taken to the medical division to be tested for the presence of the substances in his/her body. Sergeant Rivera then specified that in regards to Respondent, he was taken to the NYPD’s Medical Division to be drug tested for cause after his wife alleged, that she believed he was “roid raging” during the domestic incident. (Tr.144-145)

According to Sergeant Rivera, there were two “logs” made to IAB, both stemming from the complaint filed by Respondent’s wife. (Tr. 155) Sergeant Rivera testified that shortly after making this complaint, Respondent’s wife was interviewed by IAB. During this interview, Respondent’s wife disclosed her belief that Respondent was taking steroids and there might be narcotics and/or steroids in their marital residence (Tr. 157) Based upon the information gathered from this interview, IAB applied for a warrant to search Respondent’s home. Sergeant Rivera stated that she was present when the search warrant was executed and various items were recovered inside Respondent’s home including Dianabol. (Tr. 148) Respondent was subsequently escorted to the Medical Division for a drug test for cause (Dept. Ex. 1).

Sergeant Danny Tse, from the Drug Screening Unit of the Medical Division, testified regarding the collection of Respondent’s urine sample on July 19, 2023. Multiple documents prepared in connection with this process were admitted as a packet. (Dept. Ex. 1) According to Sergeant Tse, before he collected the urine sample he gave Respondent a questionnaire to fill out. Part of the form includes a question asking Respondent to list any prescription drugs taken during the past 3 months, Respondent indicated that there was “nothing to report.” (Tr. 52-54; Dept. Ex. 1)

After completing the questionnaire, Sergeant Tse accompanied Respondent to the bathroom, and observed Respondent urinate into a cup. Respondent then poured that urine into two separate vials, in Sergeant Tse's presence. The vials were then sealed and labeled as samples A and B. The samples were placed inside a FedEx envelope in Respondent's presence and then locked in a refrigerator, until they were sent to Quest Laboratories for analysis. Sergeant Tse was asked if at any time during the process, Respondent voiced an objection to the collection of his urine sample. Sergeant Tse testified that to the best of his recollection, Respondent did not object and that there was no deviation from the normal procedure used by the Medical Division in collecting urine for a drug test for cause. (Tr. 55-60)

Dr. R. H. Barry Sample testified that although now retired, he was employed by Quest Diagnostics as the Senior Director of Science and Technology, and continues to work as a consultant for them. Dr. Sample's *curriculum vitae*, which was submitted as Department's Exhibit 2, details his educational background and qualifications in forensic toxicology. Dr. Sample testified that he been qualified as an expert witness in many jurisdictions and venues as a forensic toxicologist and an expert in workplace drug testing. This Tribunal qualified him as an expert in forensic toxicology and workplace drug testing on consent of all parties. (Tr. 75-77)

Dr. Sample explained the process by which Quest Diagnostics' federally certified laboratory receives and tests urine specimens. (*See* Dept. Ex. 3) Initially, the specimens are checked to ensure that they are sealed and have no signs of tampering. Next, the specimens are logged into the laboratory computer system, and transferred to the processing unit for analysis. In order to determine whether there is evidence of steroid use, the specimens are tested for the presence of certain anabolic steroid metabolites, which are byproducts produced by the body after the ingestion of steroids. (Tr. 79-81)

In this case, the lab received two urine specimens provided by Respondent. Samples from both of these specimens were tested on a gas chromatograph mass spectrometer for the presence of anabolic steroids. The results of these tests are contained in two laboratory packages, one designated the "A" specimen and one the "B" specimen (Dept. Exs. 4A and 4B, respectively; Tr. 81-82)

Dr. Sample explained that consistent with standard operating procedure, a sample was removed from specimen A for anabolic steroids testing. The test result from the first sample was a "presumptive positive" for the presence of metabolites for anabolic steroids; specifically methandrostenolene metabolite. These results prompted a confirmation test on a second sample removed from specimen A, which also tested positive for the metabolites. (Tr. 83-85; Dept. Ex. 4A) In light of these two positive test results, two samples from specimen B were then tested as well. The first sample again returned a "presumptive positive," which was confirmed by a positive test result on the second sample. (Tr. 86-90; Dept. Ex. 4B)

According to Dr. Sample, the positive test results for the metabolites of methandrostenolene (specifically Epi-ethenediol, and five beta tetrahydro methyl testosterone) indicates the ingestion of methandrostenolene, which is a Class 3 drug on the controlled substances list from the DEA. Moreover, Dr. Sample testified that methandrostenolone is a steroid that cannot be legally prescribed by a physician in the United States. (Tr. 91) Dr. Sample further explained that there is no way to know, based on the tests performed on Respondent's urine samples, how long these substances had been in Respondent's body because the detection time for steroids are unique. He further expounded that the detection time depends on the specific drug, the frequency ingested, and the route of administration.

Generally speaking, orally administered drugs are detectable for a shorter period of time. And in the case of anabolic agents, again, depending on the agent, it might be a matter of

several days to weeks or over a month. Injectable forms are detectable for a longer period of time. Again, depending on whether they're water-soluble or a fat-soluble. And some of them by injection may be detectable for several months. And one of the injectables, a single dose you can detect for up to two months after it's been used. It really is a much wider window of detection (for steroids) than you might be accustomed to in your typical drugs of use (cocaine, marijuana etc.). (Tr. 94)

Dr. Joseph Ciuffo, Deputy Chief Surgeon with the Medical Division, testified about his role as medical review officer. Samples that test positive for the presence of drugs are forwarded to him for his review, to explore whether there are any legitimate alternative medical explanations for the results. A packet of documents connected with his review in this case was admitted as Department's Exhibit 5. (Tr. 101-05)

As part of his review, Dr. Ciuffo interviewed Respondent by phone on September 6, 2023, and discussed the positive drug screen result with him. During their conversation, Respondent affirmed that he did not use anabolic steroids. Dr. Ciuffo then asked Respondent about the Dianabol testosterone syringes and supplements found at his premises after a search warrant was executed. Respondent explained that he is a medic in the Army and that he administers injections. He further stated that he used his own purchased needles and syringes to give out vaccines because the military did not provide them to him. Respondent added that he was administering testosterone by injection to a fellow soldier who he did not want to name. Respondent asserted that the source of the testosterone was from that soldier's physician and that the Dianabol pills and other contents in the bag vouchered by the Internal Affairs Bureau (hereinafter "IAB") belonged to this other soldier as well. (Tr. 107)

During Dr. Ciuffo's interview, Respondent also acknowledged being aware of the Department's personnel memo regarding the prohibition of the use of anabolic steroids. Respondent then admitted that he took D-Bal Max, which is a supplement that he obtained

online, manufactured by a company called Crazy Bulk. Respondent, however, maintained that he did not take methandrostenolone. During the course of their conversation, Respondent did not disclose that he had been diagnosed with and/or was being treated for any medical condition that required him to ingest methandrostenolone or any other steroid. (Tr. 107-09)

Dr. Ciuffo testified that based upon his medical experience, methandrostenolone cannot be prescribed legally by a physician in the United States. However, had Respondent disclosed that he was taking steroids for a specific medical condition, Dr. Ciuffo, as a medical doctor reviewing drug test results, would have had a duty to explore any medical conditions that Respondent had reported to find out what he was being treated with and obtain that information from the treating physician, including pharmacy records. Dr. Ciuffo further elaborated that particularly with controlled substances, there would be a paperwork trail associated with such a prescription. However, Dr. Ciuffo reiterated that at no point did Respondent disclose any medical conditions he had and even if he had, it would not necessarily have explained his testing positive for methandrostenolone since it is not legally prescribed in the United States. (Tr. 109-10)

Respondent's Case:

Respondent called his wife as a witness. She testified that on July 19, 2023, she went to the 66 precinct because she was "coerced by a social worker" at the hospital to fill out a domestic incident report (hereinafter "DIR"). (Tr. 192-193) She explained that on July 18th she went to the hospital for her "chronic back pain" and while at the hospital she met with a social worker who "incorrectly assumed" she was a victim of domestic violence. According to Respondent's wife, the social worker warned her that if she did not go to the Police Department and make a report, ACS would be called and her children would be removed. (Tr. 196)

Respondent's wife testified that she was present when police officers initially went inside her marital residence and asked her to "bring everything that belonged to her husband" and put it on the couch. Respondent's wife complied and the police officers took pictures of the items she showed them. She then recalled that after a few hours and a lot of phone calls with detectives, she was "made to sign a document" which was not explained to her and she could not read it because she was crying. (Tr. 198-99) Respondent's wife claimed that she was told she could not stay in her apartment, so she left and stayed with her mother.

According to Respondent's wife's testimony, she was asked by officers to come back to her apartment later that day. When she arrived the second time, Respondent's wife claimed that the door to her apartment was open and being held open by "a bag of dog food." She and the officers then proceeded to enter the apartment and they searched Respondent's closet. She further asserted that she did not give anyone verbal permission to enter the apartment nor was she made aware that she could refuse consent. (Tr. 200) Respondent's wife testified that as a result of the search conducted by police, "items were removed" from her apartment but she was not shown the items and only informed that "some items were illegal." She later added that she believed they took protein shakes and other things for working out that had been purchased at GNC. (Tr. 205, 208)

When asked whether Respondent was "roid raging" at the time of that search, Respondent's wife stated that she made those statements "out of coercion." Respondent's wife also testified that she did not want to fill out the DIR, but was told by an officer that if she did not sign the DIR, someone would sign it for her. Respondent's wife further asserted that the officers had her identification and knew her pedigree information, so she felt like she could not leave the precinct. Respondent's wife stated that hours after she wrote the DIR, she was

interviewed by officers from IAB but denied making allegations that her husband was using steroids. (Tr. 206, 209-11, 214)

During cross-examination, Respondent's wife was shown a copy of the DIR in question. She acknowledged that the allegations regarding Respondent's use of steroids were made in her handwriting, but asserted that she was told what to write and that she felt "intimidated" to do so. She also claimed that even though her signature appears on the document, because she was crying at the time she signed it, she did not actually read it before signing. (Tr. 223-24)

Respondent's wife testified that it was not until after she filled out the DIR that she told anyone that Respondent was a member of service. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] Respondent's wife was then escorted to her marital residence by members of service. She testified that she entered the apartment with detectives and led them to the kitchen, hallway closet and living room of her home to find Respondent's belongings. A few hours after she showed them her husband's steroids, they all left her apartment. (Tr. 226-27)

[REDACTED]

[REDACTED]

[REDACTED] Respondent

was then informed that he would be transported by IAB officers to the Medical Division for a drug test.

During cross-examination, Respondent was questioned about the positive drug test results for anabolic steroids and asked whether he had a medical explanation for this result. Specifically, Respondent was asked to explain to the Court why he testified positive for a banned substance that cannot be prescribed in the United States. Rather than providing an explanation, Respondent replied: "I don't know what you're referring to a banned substance if it's prescribed for hypogonadism." Respondent was then asked whether he was prescribed methandrostenolone and his response was "I can't answer that because that is in violation of the Americans with Disabilities Act." When counsel for DAO explained to Respondent that he if would like to put forth a defense to the allegations, it is his burden to prove the defense, Respondent answered: "doctor-patient privilege." (Tr. 276-77)

Respondent testified that while on ordered military duty he was stationed at Fort Hamilton in Kings County and able to go home and report to duty from home. Respondent acknowledged that while on military duty, he was receiving \$500-\$600 every two weeks as "differential pay" from the City of New York to make up the difference between his Department salary and the income he was receiving from the military. Respondent further admitted that while he was issued a Military Identification Card, identifying him as a member of NYPD actively serving in the military. Respondent also conceded that while on military leave, he was still accruing vacation time within the Department. (Tr. 259-62)

This Tribunal finds that the Department adequately proved the integrity of the sample collection process, the chain of custody was not compromised, and that Respondent's samples were accurately tested using a New York State licensed and FDA cleared laboratory. Moreover, it is undisputed that Respondent tested positive for the presence of anabolic steroids, specifically Methandrostenolone, also known as Dianabol, which is a Schedule 3 drug and not available for prescription in the United States. Therefore, the only reasonable conclusion from the credible evidence adduced at trial is that Respondent wrongfully ingested or injected anabolic steroids, or precursors, leading to the positive test results. In order to ingest these controlled substances, Respondent first had to possess them. Accordingly, I find Respondent Guilty of both specifications.

Respondent represented himself at the hearing. The Tribunal recognizes the challenge that this presented for Respondent and advised him of his right to counsel and the potential consequences associated with proceeding *pro se*, prior to the commencement of this hearing. Respondent raised several legal issues and a mixed defense to the charges against him. This Tribunal, however, was not persuaded by the defenses raised by Respondent nor do they constitute a legitimate explanation for the positive test results.

There were two legal issues raised by Respondent that will be addressed in this decision, in order to shed clarity on the record, even though they had no impact on the ultimate findings of this Tribunal.

[REDACTED]

There is no dispute that Respondent's wife made a complaint against Respondent at the 66 Precinct alleging that he assaulted her during an incident that occurred on or about July 15, 2023. [REDACTED] When Respondent's wife was interviewed at the 66 Precinct by Sergeant Donewitz, she disclosed that she believed Respondent was "roid raging." Once Sergeant Donewitz learned that information, an IAB log was created to investigate the allegations that Respondent was using steroids. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Respondent also alleged that members of NYPD unlawfully entered his apartment without his consent. He further contended that it is irrelevant whether or not his wife gave them consent to search because he did not himself consent to the removal of his property from his

marital residence. Respondent stated that it is unusual for the Department to find illegal steroids in a person's home and not criminally charge the person for having said items. Respondent believed that because he was not criminally charged with the possession of steroids, "there's some cover up happening." (Tr. 248-49)

Additionally, Respondent testified that he believes it was improper for the Department to drug test him *for cause* because he was on military leave and therefore not technically "employed" as a uniform member of service. (Tr. 245-46) Respondent, however, acknowledged that he read and understood the provisions of Administrative Guide 324-12- Indefinite Military Leave – including the section which states: "Members of the service assigned to the Military and Extended Leave Desk on a leave of absence must continue to abide by all Department rules and regulations." However, Respondent vehemently asserted that Administrative Guide 324-12 directly conflicts with military law and Uniformed Services Employment and Reemployment Rights Act of 1994. (Hereinafter "USERRA") It is his position that a drug test for cause is also a violation of USERRA. (Tr. 267-68)

Respondent also argued that since he was on military leave and assigned to the Department's MELD unit, he was exempt from the rules and regulations pertaining to drug testing. Respondent repeatedly cited Administrative Guide 332-05 and 332-08 which applies to members of service on military leave and states that they are not subject to or obligated to participate in drug testing. However, these two provisions apply to *random drug testing* and not to *for cause* testing. As such, the Respondent's reliance on those two provisions is misplaced.

Administrative Guide 332-06 which governs drug screening tests for cause for uniformed and civilian members of the service, states:

Drug screening tests for cause will be administered when there is reasonable suspicion to believe that a member of the service (uniformed or civilian) is illegally using

drugs/controlled substances. When reasonable suspicion does exist, the member suspected of illegally using drugs/controlled substances MUST provide hair and urine samples when directed.

This section of the Administrative Guide does not exempt uniformed members of the service from drug testing based upon their status or military activation. Respondent asserted that because he was on active military duty, he was considered a civilian “non-member of service” and therefore not required to comply with the Patrol Guide or the Administrative Guide. This Tribunal disagrees with Respondent’s assessment of his status at that time.

The fact that Respondent was on military leave does not sever the relationship and responsibilities he has to the Department. In fact, Administrative Guide 324-12 - Indefinite Military Leave - specifically reminds members of the service assigned to MELD that they “must continue to abide by all department rules and regulations.” While not physically reporting for duty, members of service on military leave are still members of the Department for all intents and purposes. This is evidenced by their ability obtain a Department-issued identification card, their ability to accrue vacation and buy back time for credit for retirement, and other benefits, including differential pay and medical benefits. Respondent further claimed that because he was suspended without pay prior to being drug tested, he was not subject to Department rules and regulations. That is wholly inaccurate according to the Administrative Guide.

Furthermore, Respondent's testimony regarding the positive drug test results was self-serving and required suspension of disbelief. It must be underscored that Respondent did not deny ingesting steroids. Instead, he claimed that the steroids for which he tested positive were prescribed to him by a doctor. Despite being asked for medical records and/or physician contact information on numerous occasions, Respondent failed to provide any information or documentation in support of his purported diagnosis and treatment. This raises serious doubts regarding the legitimacy of Respondent’s assertion. Instead of providing a reasonable

explanation, Respondent asserted the “doctor-patient privilege” which does not even apply here given the fact that he is not a doctor testifying about a patient. All of this suggests to the Tribunal that Respondent was trying to conceal his illegal use of anabolic steroids from the Department.

PENALTY

In order to determine an appropriate penalty, this Tribunal, guided by the Department’s Disciplinary System Penalty Guidelines, considered all relevant facts and circumstances, including potential aggravating and mitigating factors established in the record. Respondent’s employment history also was examined. *See* 38 RCNY § 15-07. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached memorandum.

Respondent, who was appointed to the Department on October 7, 2019 has been found Guilty of both charges. The Department has requested that Respondent be dismissed from the Department. Based upon the record before me, I concur in that recommendation.

The NYPD is a drug-free workplace, and its employees are prohibited from using controlled substances. Previous cases involving the use of steroids have been deemed an egregious violation of Department policy, warranting separation from the Department. *See Disciplinary Case No. 9365/13* (Nov. 20, 2015) and *Disciplinary Case No. 9945/13* (Feb. 5, 2015), where in each case the Police Commissioner offered vested-interest retirement for steroid offenses. Additionally, the Disciplinary Guidelines provide that the presumptive penalty for having a positive test result for an anabolic steroid without a valid and lawfully obtained prescription, is termination.

Although Respondent has had no formal disciplinary history during his five years of service to the Department, the presumptive penalty is appropriate here. There were no mitigating factors presented in this case. Respondent failed to take accountability or express remorse for his actions. Moreover, this Tribunal found Respondent's claim that he was prescribed steroids by a licensed medical professional unpersuasive given the absence of evidence to support this contention and the credible testimony of two experts in the medical field.

Taking into account the facts and circumstances in this matter, along with the legal precedent, I recommend that Respondent be DISMISSED from the New York City Police Department.

Respectfully submitted,

Vanessa Facio-Lince

Vanessa Facio-Lince
Assistant Deputy Commissioner Trials

APPROVED
MAR 14 2025
Jessie Tisch
JESSICA S. TISCH
POLICE COMMISSIONER



POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials

To: Police Commissioner

Subject: SUMMARY OF EMPLOYMENT RECORD
POLICE OFFICER ELIJAH PARDIEU
TAX REGISTRY NO. 968695
DISCIPLINARY CASE NO. 2023-28921

Respondent was appointed to the Department on October 7, 2019. On his most recent performance evaluations, he was rated “Exceptional” for 2021 and received 3.0 rating of “Competent” in 2020. He has been awarded one medal for Excellent Police Duty.

In connection with the instant matter, Respondent was suspended without pay on October 27, 2023; he remains suspended with pay to date. Earlier in 2023, while on military leave, Respondent was suspended without pay from July 19 to August 17, 2023 in connection with a domestic incident referenced in this decision. Respondent also has pending disciplinary charges related to that incident.

Respondent has no prior formal disciplinary history.


Vanessa Facio-Lince

Vanessa Facio-Lince
Assistant Deputy Commissioner Trials